

24STCV04638 24STCV04638

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C06%2F25%2F2026

Source SHA-256: 49edb0a6e47ba06711134ef462769c233ed6760b2c4e2c4ee98ac462beecc859

Case Number: 24STCV04638 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

DANA

BRUNETTI,

Plaintiff,

v.

CAVALRY

HOLDINGS, LLC, et al.,

Defendants.

Case No:

24STCV04638

Hearing Date: June 25, 2026

Calendar Number: 5

Defendant

B4U US, Inc. moves for a protective order as to Plaintiff's Special

Interrogatories.

Defendant's

motion is DENIED.

Background

This is an employment case. Plaintiff Dana Brunetti ("Plaintiff") filed this action on February 26, 2024, against Defendants Cavalry Holdings, LLC dba Cavalry Media, B4U US, Inc. dba Tiger Media ("Defendant"), Keegan Rosenberger, and Ishan Saksena.

On June 20, 2025, Plaintiff

filed a First Amended Complaint, alleging causes of action for: (1) breach of written contract; (2) breach of implied covenant of good faith and fair dealing; (3) failure to pay wages; (4) waiting time penalties; (5) constructive wrongful termination; and (6) unfair business practices.

Plaintiff

alleges he was a co-founder of Cavalry Holdings, LLC ("Cavalry") and its Chief Content Officer. Plaintiff entered into a two-year employment agreement with Cavalry on June 14, 2018.

Plaintiff alleges

that he was constructively terminated when Defendants abruptly
ceased paying his \$750,000 annual salary, eliminated staff health
insurance, and failed to honor other contractual obligations.

On May 4, 2026, Defendant filed this

motion for a protective order. No opposition has been filed.

Legal Standard

The court shall limit the

scope of discovery if it determines that the burden, expense, or intrusiveness

of that discovery clearly outweighs the likelihood that the information sought

will lead to the discovery of admissible evidence. The court may make

this determination pursuant to a motion for protective order by a party or

other affected person. This motion shall be accompanied by a meet and

confer declaration under Code of Civil Procedure section 2016.040. (Code

Civ. Proc., § 2017.020(a).)

The court shall restrict the

frequency or extent of use of a discovery method provided in if it determines

either of the following:

- 1.

The discovery sought is unreasonably cumulative or

duplicative, or is obtainable from some other source that is more convenient,

less burdensome, or less expensive.¿

2.

The selected method of discovery is unduly burdensome

or expensive, taking into account the needs of the case, the amount in

controversy, and the importance of the issues at stake in the litigation.¿

¿

(Code Civ. Proc.,¿§

2019.030(a).)¿

Code of Civil Procedure

section¿2030.090(a) provides that a party upon whom interrogatories have been

propounded may “promptly” move for a protective order. Code of Civil

Procedure section 2030.030 limits

the number of interrogatories that can be propounded to 35. Code of Civil Procedure section 2030.040 permits a

party to propound more than 35 special interrogatories with a declaration of

necessity. It states: Any party who

attaches a declaration of necessity may propound a greater number of specially

prepared interrogatories to another party if this greater number is warranted

because of any of the following:

(1)

The complexity or the quantity of

the existing and potential issues in the particular case.

(2)

The financial burden on a party

entailed in conducting the discovery by oral deposition.

(3) The expedience of using this method of discovery

to provide to the responding party the opportunity to conduct an inquiry,

investigation, or search of files or records to supply the information sought.

(CCP § 2030.040(a).)

“The

court, for good cause shown, may make any order that justice requires to

protect any party or other natural person or organization from unwarranted

annoyance, embarrassment, or oppression, or undue burden and expense.” (Code

Civ. Proc., § 2030.090(b).)

In addition, if a responding

party seeks a protective order on the grounds that interrogatories are

unwarranted, the propounding party has the burden to justify more than 35

requests. (CCP § 2030.040(b).)

The concept of good cause requires a showing of specific facts

demonstrating undue burden, unwarranted embarrassment, oppression, or

unwarranted annoyance, and justifying the relief sought. (Goodman v. Citizens Life & Casualty Ins. Co. (1967) 253

Cal.App.2d 807, 819-820 (citing Waters v. Superior Court of Los Angeles

County (1962) 58 Cal.2d 885, 893; Carlson v. Superior Court of Los

Angeles County (1961) 56 Cal.2d 431, 437-438).)

The

burden is on the party seeking the protective order to show "good cause" for

whatever order is sought. (Fairmont Ins. Co. v. Superior Court (2000)

22 Cal.4th 245, 255 (citing Goodman, supra, 253

Cal.App.2d at 819).)

Discussion

Defendant requests that

this Court issue a protective order precluding Defendant from responding to Set

One of Plaintiff's special interrogatories, which contain 150 special

interrogatories.

As noted above,

Defendant has the burden of showing good cause. A motion for a protective order must

include supporting evidence, which may include, at minimum a supporting

declaration stating, for example, "some showing either of an intent to

create an unreasonable burden or that the ultimate effect of the burden is

incommensurate with the result sought." (West Pico Furniture Co. of Los

Angeles v. Superior Court (1961) 56 Cal.2d 407, 417.) Defendant's only supporting evidence is counsel's declaration stating in a conclusory fashion that the interrogatories were excessive, burdensome and redundant. But a supporting declaration containing mere conclusions is insufficient to establish good cause for a protective order. (People v. Superior Court (1967) 248 Cal.App.2d 276, 281.) Thus, Defendant has not established good cause here.

Moreover,

Defendant's proof of service is defective. It states that this motion was served in March of 2025, but the interrogatories were served in 2026. Thus, it is unclear if Plaintiff was served with this motion and there is no opposition to show that Plaintiff was in fact served.

As the motion is

denied, so is the request for sanctions.

Defendant's motion

for a protective order is DENIED.